

M/s Jai Hanuman Rice Mill v. Dakshinanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 21 March 2017 · Writ-C No. 29564 of 2014 · **Writ dismissed; reasons adopted from companion order.**

HEADNOTE

A consumer's writ seeking quashing of an additional-security demand under clause 4.20 of the U.P. Electricity Supply Code, 2005 was dismissed, the later Division Bench adopting reasons recorded the same day in Writ-C No. 30898 of 2016. Earlier, another Bench had connected the petition with a similar writ, called for affidavits, and restrained the discom from demanding additional security until further orders.

FACTUAL SUMMARY

M/s Jai Hanuman Rice Mill, a consumer of Dakshinanchal Vidyut Vitran Nigam Ltd., challenged a 12 May 2014 demand notice seeking additional security under clause 4.20 of the U.P. Electricity Supply Code, 2005. Counsel submitted that similar petitions, including Writ Petition No. 51844 of 2009 (M/s Supreme Ceramics Limited), had been entertained with interim stay. On 27 May 2014 the Court connected the matter with an earlier writ, directed affidavits, and stayed the demand. On 21 March 2017 a later Bench dismissed the petition by reference to a companion order.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20

additional security

HOLDING

The writ petition seeking quashing of a demand notice for additional security under clause 4.20 of the U.P. Electricity Supply Code, 2005 was dismissed, the Division Bench adopting the reasons recorded the same day in Writ-C No. 30898 of 2016. Pending disposal, an earlier Bench had, without prejudice to the parties' rights, restrained the licensee from demanding that additional security, following an interim order in a similar petition. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — INDEPENDENT CONSTRUCTION OF CLAUSE 4.20

This order dismisses the petition by adopting reasons recorded the same day in Writ-C No. 30898 of 2016 and does not itself construe additional-security under clause 4.20. ¶ 2

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
M/s Supreme Ceramics Limited v. Paschimanchal Vidyut Vitran Nigam Ltd. Writ Petition No. 51844 of 2009, order dated 7.10.2009			1	Referred